LAZARUS CHIWANZA

Versus

TINASHE DHUMBA

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE 19 February 2026

Request to stand down a trial

K. Tundu for the plaintiff

DUBE-BANDA J:

[1] In this trial, the plaintiff closed his case, and the defendant made an application for absolution from the instance, which application was dismissed. See *Chiwanza* v *Dhumba* HH- 870-25. The matter was set down for 19 February 2026 at 1000hrs for continuation of the trial at the High Court in Harare. When the matter was called, Mr. *Tundu*, counsel for the plaintiff, appeared, and the plaintiff was not in attendance. The defendant was in attendance, however his counsel, Mr. *Gumiro,* did not appear. Mr. *Tundu* informed the court that due to certain developments, the plaintiff was not in attendance but was on his way to court. In addition, counsel informed the court that Mr. *Gumiro* was appearing in another matter at the High Court sitting in Chinhoyi, which is approximately 117km from Harare. He said it was in that context that Mr. *Gumiro* had requested that this trial be stood down to 1400hrs. It appeared to me that the conduct of the parties and their legal practitioners was irregular. I then stood down the matter for 10 minutes to enable the litigants and their legal practitioners to regularise their respective positions.

[2] When the court reconvened, the plaintiff was now in attendance; however, Mr. *Gumiro* was still in no-show, nor had he sought the assistance of another legal practitioner to stand in for him. Mr. *Tundu* repeated that Mr. *Gumiro* was requesting that the trial be stood down to 1400hrs. At that stage, I formed the defendant that since he was on record represented by a firm of legal practitioners, i.e., *Moyo Chikomo & Gumiro* legal practitioners, and that such legal practitioners have not renounced agency, he had no right of audience in person. In

Bariadie Investments (Private) Limited v *Chiutsi & Ors* SC 24/22 at para 45, the court said:

> "It is a matter of procedure that a legally represented litigant does not casually address and seek relief from the Court as a self-actor unless and until his or her legal practitioners have renounced agency."

[3] The result of the absence of Mr. *Gumiro* meant that the defendant was in default of appearance at the trial.

[4] For completeness, it is important that I discuss something disconcerting that occurred in this matter. Earlier in the week, before the set down date, Mr. *Gumiro* approached my research assistant and requested to see me in chambers. I enquired from the assistant whether Mr. *Gumiro* was accompanied by counsel for the opposing party, and I was informed that he was alone. I declined to see him. Again, on the date of set down, before the matter was called, Mr. *Tundu* approached my assistant seeking to see me in chambers. I was informed that he was alone. I declined to see him. It is trite and basic that, in general, a judicial officer cannot have audience with a legal practitioner in chambers to discuss a matter in the absence of the opposing party's legal practitioner. Such is prohibited to ensure fairness, neutrality, transparency, and procedural fairness i.e., the right to be heard. As the adage goes, "justice must not only be done, but must be seen to be done." This is the reason I declined to see both counsel, who both sought, on different days, to see me in chambers in the absence of the legal practitioner for the opposing party.

[5] The principles relating to standing down a matter are synonymous with those relating to a postponement and are well established. A judge has discretion as to whether to grant or refuse a request to stand down a matter. This discretion must be judicially exercised. A request to stand down a matter cannot be claimed as of right. It is not for a mere asking. Such a request seeks an indulgence from the court, and a litigant seeking such an indulgence must show that there is good cause for such a request. The court, in exercising the discretion whether to stand down a matter, will consider several factors, including whether the application has been timeously made, whether the explanation given by the litigant is satisfactory, whether there is prejudice to any of the parties, and the convenience of the court. All these and other relevant factors will be weighed by the court to determine whether it is in the interests of justice to stand down the matter.

[6] In addition, it is important that a party seeking to stand down a matter must be prepared for a grant or refusal of such a request. A legal practitioner must be prepared, in the event of refusal by the court to grant a stand down, to proceed with the hearing. See *Midkwe Minerals (Pvt) Ltd* v *Kwekwe Consol Gold Mines (Pvt) Ltd & Ors* 2013 (2) ZLR 197 (S). A legal practitioner who seeks a stand down of a trial and is not ready to proceed when ordered to do so would be operating on a misconception that such a request is there for the asking. It is not.

[7] In the present case, the notice of hearing was served on the parties on 2 February 2026, for a continuation of the trial set down for 19 February 2026. The parties had more than two weeks' notice. No indication was made that Mr. *Gumiro* had another engagement at the High Court in Chinhoyi, and that he would only be available at 1400hrs, instead of the appointed time. Mr. *Gumiro* did not ask another legal practitioner to appear in court for the purposes of making an oral application that the matter be stood down. Mr. *Tundu* could not make an application for the defendant because he is representing the plaintiff. Any attempt by Mr. *Tundu* to make an application at the instance of the defendant could have easily resulted in an undesirable case of conflict of interest. Possibly this explains why counsel did not make a substantive application but merely informed the court that Mr. *Gumiro* is in Chinhoyi, and that he requests that the trial be stood down.

[8] It is apparent that Mr. *Tundu* and Mr. *Gumiro* had agreed that the matter shall be stood down. This is so because Mr. *Gumiro* simply absented himself from court, nor did he ask another legal practitioner to appear in court and make an application on his behalf. They anticipated that the court would simply rubber-stamp their agreed position. A court cannot merely rubber-stamp a position taken by the parties. The grant or refusal to stand down a trial is a judicial function. Notwithstanding the agreement of the parties, the court must decide whether a case has been made for the relief sought. In *casu*, no proper application was made for the matter to be stood down to 1400hrs. It was a mere request that could not be elevated to the status of an application. In the event it was impossible for Mr. *Gumiro* to attend the hearing, he must have briefed another legal practitioner to make the application, who was going to be ready, should the application be refused, to proceed with the trial. This was not done. It is for these reasons that the request to stand down the trial was refused.

[9] The agreement between the legal practitioners, whatever its terms were, did not consider the convenience of the court. The last thing that our already congested court rolls and judicial work overload require is conduct that unnecessarily stalls hearing of set down matters. It is important that legal practitioners internalise the fact that a trial cannot be stood down or

postponed unless there are valid reasons for doing so. Otherwise, any other approach would worsen judicial work, overload and congest court rolls to the breaking point.

[10] Because of the conduct of the legal practitioners in this matter, I took the view that both parties are not ready for trial. It is for these reasons that this matter must be removed from the roll and with an order that, should the parties decide they are ready for trial, the trial shall be heard virtually on the IECMS platform or physically at the High Court in Masvingo. This is so because my workstation is now at the High Court in Masvingo, and I travelled almost 300 kilometres to attend to this and other partly heard matters at the High Court in Harare.

In the circumstances and as a consequence thereof, I order as follows:

(a) The matter is removed from the roll because the parties are not ready for trial.
(b) In the event the matter is set down for continuation of trial, it shall be heard virtually on the IECMS platform or physically at the High Court in Masvingo.

Tundu Law Chambers, plaintiff's legal practitioners
Moyo Chikomo & Gumiro, defendant's legal practitioners